

# Mohammed Iftequar Ahmed vs The State Of Telangana on 23 July, 2025

THE HONOURABLE SMT. JUSTICE K. SUJANA

CRIMINAL PETITION No.4593 of 2025

ORDER:

This Criminal Petition is filed Section 528 of the Bharatiya Nagarik Suraksha Sanhita, 2023 (for short 'the BNSS') seeking to quash the proceedings against the petitioner/accused in C.C.No.613 of 2023 on the file of the learned III Additional Judicial Magistrate of First Class, Mahabubnagar, registered for the offences punishable under Sections 354D and 509 of the Indian Penal Code, 1860 (for short, 'IPC') and Section 66(A) of the Information Technology Act, 2008 (for short, 'IT Act').

2. The brief facts of the case are that on 24.07.2023, the de-facto complainant lodged a report before the Police against the petitioner stating that she was married to Mr. Mohammed Iftekar Ahmed in October 2021, and they had a daughter. Due to family disputes, they divorced on 13.03.2023 before their family members and community elders, as per customary practices and since then they have been living separately. Subsequently, the petitioner allegedly extracted voice recordings of her private SKS,J conversations with friends from her mobile phone and shared them with her relatives and acquaintances, spreading false publicity against her and also reported that the petitioner threatened her to live with him or he would circulate her private photos and videos on social media to ruin her reputation and damage her prestige in the society.

3. Basing on the said complaint, the Police registered a case in Crime No.229 of 2023 for the offences punishable under Sections 354D and 509 of IPC and Section 66(A) of IT Act and they filed the charge sheet, vide C.C.No.613 of 2023 before the learned III Additional Judicial First Class Magistrate, Mahabubnagar. Aggrieved thereby, the petitioner filed the present criminal petition to quash the proceeding against him.

4. Heard Sri P. Vamsheedhar Reddy, learned counsel for petitioner, Sri M. Vivekananda Reddy, learned Assistant Public Prosecutor, appearing for respondent No.1-State and Sri Mohd. Valiur Rahman, learned counsel for respondent No.2.

5. Learned counsel for the petitioner submitted that the petitioner is innocent and none of the alleged offences are applicable to him and that the contents of the complaint and SKS,J those in the charge sheet are entirely inconsistent and contradictory, and that there is no evidence linking the petitioner to the alleged offences. He further submitted that the Investigating Officer, without any documentary proof, filed the charge sheet solely based on the material provided by respondent No. 2 and that continuation of proceedings under Section 66A of the IT Act is an abuse of process, as the said provision was laid down by the Hon'ble Supreme Court in Shreya Singhal Vs. Union of India 1.

6. Learned counsel for the petitioner contended that there are no specific allegations to attract the offence under Section 354D of IPC, which criminalizes the act of stalking, which involves following, contacting or attempting to contact a person repeatedly despite their clear indication of disinterest. In support of this, the prosecution relied on the statement of LW.4, who admitted that he had no knowledge of being listed as an eyewitness in the case. LW.4 also submitted an affidavit stating that he had no knowledge about what is alleged in the complaint and is also ready and willing to come before the Court and depose of the same to that effect and further contended that the elements required to establish offence under Section 506 of IPC, such as AIR 2015 SC 1523 SKS,J intent to insult the modesty of a woman and repeated unwelcome contact are not there in the present case. Therefore, he prayed the Court to quash the proceedings against the petitioner by allowing this criminal petition.

7. On the other hand, learned counsel for respondent No.2 submitted that the allegations made against the petitioner are serious and grave in nature. Despite the divorce, the petitioner allegedly continued to contact the complainant, pressuring her to cohabit with him, and resorted to threats and blackmail her with the intent to defame and harm her reputation and further submitted that the actions of the petitioner amount to psychological harassment and constitute offences under relevant sections of law and relied on the principles laid down in State of Haryana Vs. Bhajan Lal 2 and contended that the present case does not fall within any of the categories outlined under paragraph 8.1 of the said judgment which justify quashing of criminal proceedings. Therefore, prayed the Court to dismiss the petition.

8. Learned Assistant Public Prosecutor submitted that the petitioner allegedly harassed and blackmailed the complainant, 1992 Supp(1) SCC 335 SKS,J threatening to defame her on social media and that these acts constitute the charges under Sections 354D and 509 of IPC. However, the contention regarding Section 66A of IT Act may be considered separately, but it does not invalidate the allegations that fall squarely under other relevant penal provisions and prayed the Court to pass appropriate orders.

9. Considering the submissions made by both learned counsel and upon perusal of the material available on record, it is observed the offences alleged against the petitioner are punishable under Sections 354D and 509 of IPC and Section 66(A) of IT Act. However, Section 66(A) of the IT Act was laid down by the Hon'ble Supreme Court in Shreya Singhal v. Union of India (supra), and thus, it is no longer a valid provision under law. Accordingly, registration of an FIR or continuation of proceedings under Section 66(A) of IT Act is impermissible. With respect to Section 509 IPC, which pertains to words, gestures, or acts intended to insult the modesty of a woman and provides for simple imprisonment up to three years and fine, but as seen from the complaint, it appears that there is no specific allegation indicating use of abusive or insulting language by the petitioner toward the complainant. Therefore, Section 509 IPC is not applicable in the present case. The remaining allegation pertains SKS,J to Section 354D IPC, which criminalizes the act of stalking. It is alleged that the petitioner sent repeated messages to respondent No.2 insisting her to live with him and threatened to publish private photographs and videos retrieved from her laptop and mobile phone. The petitioner has placed WhatsApp chats on record showing that respondent No.2 also responded positively to his messages. This material, however, requires appreciation during the

course of trial and cannot come to a conclusion to quash the charge at the present stage.

10. Accordingly, the Criminal Petition is allowed-in-part and the proceedings against the petitioner for the offences punishable under Section 509 IPC and Section 66(A) of IT Act are hereby quashed. However, the proceedings initiated against the petitioner for the offence punishable under Section 354D of IPC shall continue.

Miscellaneous applications, if any pending, shall also stand closed.

\_\_\_\_\_ K. SUJANA, J Date: 23.07.2025 SS